

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jonathan Kaminsky	Team: Team # 7	CCRB Case #: 200302000	☒ Force	☐ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Sunday, 03/09/2003 3:50 AM	Location of Incident: § 87(2)(b)	Precinct: 79	18 Mo. SOL 9/9/2004	EO SOL 9/9/2004	
Date/Time CV Reported Tue, 03/11/2003 6:23 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 03/18/2003 3:31 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officers			
2. POM Norman Grandstaff	24629	922445	79th Precinct
3. POM Adolfo Piazza	10818	896623	79th Precinct
4. Officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Manuel Munoz	01147	921615	90th Precinct
2. POF Dolores Pilnacek	18676	893523	79th Precinct
3. POM Fawad Khan	30952	925537	90th Precinct
4. POM Thomas Brown	04407	896241	90th Precinct
5. POM George Colorado	05826	915480	90th Precinct
6. LT Richard Dee	00000	895356	79th Precinct
7. SGT Sean Patterson	02379	921661	79th Precinct
8. SGT Joseph Digennaro	04419	906107	79th Precinct

Officer(s)	Allegation	Investigator Recommendation
A. POM Norman Grandstaff	Force: PO Norman Grandstaff used physical force against § 87(2)(b)	§ 87(2)(b)
B. Officer	Force: An officer struck § 87(2)(b) with a flashlight.	§ 87(2)(b)
C. POM Adolfo Piazza	Force: PO Adolfo Piazza used physical force against § 87(2)(b)	§ 87(2)(b)
D. Officer	Force: An officer used pepper spray against § 87(2)(b)	§ 87(2)(b)
E. Officers	Force: Officers used physical force against § 87(2)(b)	§ 87(2)(b)

Synopsis

Early on the morning of March 9, 2003, there was a large party held at a rented catering hall at 760 Bedford Avenue in Brooklyn. Several officers were conducting crowd control in front of the location when a large fight broke out inside over stolen coats. One of those at the center of the fight was § 87(2)(b). In the chaos, an officer grabbed a hold of § 87(2)(b) and a second officer, whom § 87(2)(b) identifies as PO Norman Grandstaff, punched him. § 87(2)(g)

§ 87(2)(b) was arrested and in the course of his arrest was hit by a flashlight on the top of his head. § 87(2)(g)

§ 87(2)(b). Shortly after this, § 87(2)(b) punched another officer, PO Adolfo Piazza, in the nose, breaking it. In the course of his subsequent arrest, which he resisted, PO Piazza punched him in the ear, causing a laceration. § 87(2)(g)

§ 87(2)(b). Finally, the complainant in this case, after observing all of this, threw a glass bottle at another officer, PO Manuel Munoz. PO Munoz ducked, and the bottle hit PO Fawad Khan in the head, causing a laceration. § 87(2)(b) was pepper sprayed by an unidentified officer and PO Khan and PO Munoz effected his arrest. § 87(2)(b) alleges that excessive force was used against him in the course of his arrest. § 87(2)(g)

Summary of Complaint

§ 87(2)(b) filed this complaint with Internal Affairs on March 11, 2003. IAB forwarded the case to the CCRB on the same date. § 87(2)(b) was interviewed by the CCRB at Rikers Island on April 9, 2003. The following is a summary of that interview. (enclosure 10)

In the early morning of March 9, 2003, § 87(2)(b) was working at a rented catering hall at 760 Bedford Avenue in Brooklyn, where there was a party. There were approximately 1,000 people in attendance. § 87(2)(b) He was holding a Poland Spring water bottle. The club had two dance floors, one in the basement and one on the first floor. At approximately 0250 hours, there was a commotion, and people started to rush upstairs. § 87(2)(b) followed the crowd. He went around the side of the crowd, and worked his way toward the lobby, which led to the exit. As he was walking on the left side of the crowd and into the lobby, he observed approximately 35 officers, all in blue uniforms, all of them “beating people” with their fists and with flashlights. The crowd was trying to exit the building, and the officers were preventing people from doing so. § 87(2)(b) observed a man in the crowd (who he later learned to be § 87(2)(b) being hit by approximately eight officers. § 87(2)(b) had his hands behind his back. § 87(2)(b) states that “even though § 87(2)(b) was cuffed, the cops couldn’t get him down.” After this, approximately four officers (who § 87(2)(b) could not give descriptions of) were “taking turns” punching § 87(2)(b). Likely in response to the officers assaulting § 87(2)(b) § 87(2)(b) states that he observed one glass bottle thrown in the direction of officers.

It did not hit any officers, landing on the carpeted floor and not breaking. § 87(2)(b) did not see who threw the bottle or where it came from. § 87(2)(b) then observed, close to where he was standing on the left side of the lobby (facing the entrance), another man who he did not know (but who he later learned to be § 87(2)(b) who was bending down to help a friend who had fallen down. As § 87(2)(b) was doing this, four to five officers grabbed a hold of him and threw him onto a table. 7-9 officers then punched and kicked § 87(2)(b) who did not appear to be resisting them. § 87(2)(b) was handcuffed. The 7-9 officers continued to punch and kick § 87(2)(b) about the face, stomach and ribs. An officer § 87(2)(b) does not know which) ripped an earring out of § 87(2)(b)’s right ear (and § 87(2)(b) states that § 87(2)(b) had to have stitches in his ear as a result). § 87(2)(b) moved toward the exit door and was preparing to ask officers standing near the door to let him leave. As he was walking toward the door, someone from behind pushed him, likely unintentionally. The Poland Spring bottle fell out of his hand. A white male officer grabbed § 87(2)(b) by the front of his shirt and pepper-sprayed him in the face at close range. § 87(2)(b) closed his eyes. § 87(2)(b) from this

point forward until being removed from the building had his eyes closed. He was punched two times in the right temple area of his face. The second blow brought him to the floor. He lay down sideways with his face sideways on the floor. He sustained 15-20 punches to the face while on the floor, and he was kicked 8 or 9 times in the ribs, stomach, back, and neck. He does not know how many officers were involved in assaulting him, but he knows that it was several, and he could hear an officer saying, "let me get some of him, let me get a piece of him." § 87(2)(b) was in a great deal of pain from the assault and was not moving or speaking. While he was being punched and kicked, officers were holding his arms and legs, and he was not resisting them in any way. He does not recall at what time he was handcuffed, but he was cuffed at some point while lying on the floor. Also while on the floor, officers used additional pepper spray against him. § 87(2)(b) was on the floor being hit, kicked, and maced by an unknown number of officers for approximately 25 minutes. Eventually, he was brought up by his hair and his handcuffs. He was led out to marked a police vehicle, and his eyes were still closed.

§ 87(2)(b) was transported to the 79th Precinct stationhouse and was led to a cell. Also at the stationhouse were § 87(2)(b) who was bleeding from the head, and § 87(2)(b). At approximately 0930 or 1000 hours, § 87(2)(b) was transported to Central Booking. He was seen by a female EMT at Central Booking and told her that he had bruising to his face. He asked her for treatment. She said that he would be treated shortly. § 87(2)(b) was treated at approximately 1745 hours, when he was brought to § 87(2)(b) where he was treated for his injuries: facial bruising and swelling, lower back and base of neck pain, and a bruise to the right ribcage.

Results of Investigation

Civilian Statements

§ 87(2)(b) Photo Viewing (enclosure 11)
§ 87(2)(b) was shown photos of officers identified by police paperwork as having been present at the scene in the hopes that he would identify officers in physical contact with § 87(2)(b) and § 87(2)(b). § 87(2)(b) did not identify any officers in contact with the other victims in this case. Instead, he listed several officers he saw hitting and kicking him. § 87(2)(g)

§ 87(2)(b) (enclosure 12)
§ 87(2)(b) was interviewed at § 87(2)(b) in Brooklyn on June 8, 2003. On March 9, 2003, at 0100 or 0130 hours, § 87(2)(b) arrived alone at the club on Bedford, where he met two of his friends, who he did not wish to name so as to avoid involving them. § 87(2)(b) declined to give the names of those people he knew at the club, saying that they "wouldn't be willing" to give statements to the CCRB, because they "wouldn't want to get involved" with this, particularly as no money is at stake, as § 87(2)(b) is not pursuing a civil case.)

When the party ended at approximately 0300 hours, § 87(2)(b) who was not at all drunk, and other partygoers, who had checked their coats, went to the coat check and discovered that the majority of the expensive coats, including § 87(2)(b)'s coat, had been stolen. The crowd became "rowdy" and argumentative, as everyone started to push each other. § 87(2)(b) began to argue with the coat check attendant, whom he knew, about his missing coat. One of § 87(2)(b)'s friends hit the coat check attendant.

§ 87(2)(b) moved to the middle of the lobby between two doors facing the exit, when two officers entered the club. One of these officers, a white male in uniform who he could not identify in his photo viewing interview (enclosure xxx), grabbed a hold of his arm and questioned him about the cloak room incident. § 87(2)(b) believes that since it was loud in the club, it may have appeared that he and this officer were fighting even though this was not the case. The second officer, identified by § 87(2)(b) through photographs as PO Grandstaff, hit him with a closed fist on his left cheek. § 87(2)(b) turned to the first officer and asked why PO Grandstaff had hit him, adding that he hits "like a girl."

§ 87(2)(b) heard a commotion to his right and saw that his two friends were trying to get the first officer off of him. § 87(2)(b) tried to run back into the club through the middle door but he was unable to break free of the officer's grip. Approximately ten officers grabbed him and threw him on a table near the door. These officers commenced punching and kicking him. (He was unable to identify any of these officers when shown photos.) He is not certain at what point he was handcuffed. At one point in the struggle, he again attempted to break free from the officers, but was unable to because there were too many officers and also civilians in his way from escaping through the door. § 87(2)(b) initially states that the officers had a hold on him, but later states that they did not have a hold him but were only kicking and punching him. § 87(2)(b)'s friends and approximately 30 others attempted to pull him through the front door and push the officers further into the club.

One of § 87(2)(b)'s friends later told him that he was "cracked over the head" with a flashlight by an officer but § 87(2)(b) only remembers that he was bleeding from the head.

When § 87(2)(b) reached the stationhouse, he began to have trouble breathing because of his asthma. He was then taken to the hospital where he was diagnosed with bronchitis. He did not request treatment for the laceration to his head, but he received five stitches.

He was charged with § 87(2)(a) 160.50. His criminal case was adjourned in contemplation of dismissal.

§ 87(2)(b) was shown photos of all of the officers involved in this incident on September 26, 2003. He was not able to identify except for PO Grandstaff, who, he states, was the officer who first hit him. (enclosure 13)

§ 87(2)(b) (enclosure 14)

§ 87(2)(b) was interviewed at § 87(2)(b) in Brooklyn on April 14, 2003. On the morning of March 9, 2003, § 87(2)(b) attended the above-mentioned party. He was there with friends, but does not wish to involve them and does not name them. He had been there for a while and observed a fight breaking out while he was in the middle of the club on the dance floor, closer to the door to the lobby on the left-hand side. The fight was in the lobby. The lights came on and there was a lot of noise. § 87(2)(b)

§ 87(2)(b) walked out into the lobby to see what was happening. He had a Hennessy bottle in one hand. He had been drinking, and was inebriated. While § 87(2)(b) was standing on the side of the lobby by a table, he observed an officer get hit with something. He does not know who this officer was, what he was hit with, or who hit him. § 87(2)(b) did not hit this officer. § 87(2)(b) was leaning against the table. He was apprehended at this time by one or more officers. He does not know how many officers came into contact with him. He did not go to the ground. He did not resist arrest in any way. He was struck in his left ear while being arrested. He does not know at what point he was handcuffed or for how long the struggle lasted. He did not see who hit him. § 87(2)(b) was taken outside to a police vehicle and was transported to the stationhouse. He was taken from the stationhouse to the hospital, where he was treated for his ear. He was charged with assault and spent two weeks in jail after this incident. § 87(2)(b) does not believe that he'd recognize officers in this incident if shown photographs of them.

Officer Statements

§ 87(2)(g)

All officers interviewed in this investigation concur that there was a large crowd outside of the club trying to get in. Several officers state that they arrived to witness this crowd and engage in crowd control before a commotion broke out inside of the club. All officers describe a chaotic scene inside of the club, with fights having broken out and with a large number of people frantically trying to leave.

PO Fawad Khan (enclosure 24)

On March 9, 2003, PO Fawad Khan of the 90th Precinct worked with PO George Colorado. Once inside the club, PO Khan observed a commotion on the right of the hall with an unknown number of officers at the center of it. PO Khan went and stood between these officers and civilians who were attempting to approach them. He felt someone hit him from behind. He looked behind him and saw no one. He turned back around. He then felt something hit the side of his head above his right ear. PO Khan had been separated from PO

Colorado and was now with PO Manuel Munoz. PO Munoz started to run away from the commotion. PO Khan, not wanting to leave PO Munoz alone, ran after him. He later learned that PO Munoz was chasing the man that he had observed throw the bottle at PO Khan. PO Khan did not observe who threw the bottle at him. The man, who PO Khan identified through photographs as § 87(2)(b) threw himself to the ground chest-first and lay on the ground. He put his hands underneath his waist and held onto his belt with both hands. PO Khan and PO Munoz tried to place § 87(2)(b) in handcuffs. They were kneeling on either side of him, with PO Khan on the left and PO Munoz on the right. PO Khan was trying to move § 87(2)(b)'s hand from his belt and place it behind his back. He had no physical contact with § 87(2)(b) aside from his hands on his arm. He did not observe PO Munoz have any other physical with § 87(2)(b) either. This lasted for approximately two minutes. More officers arrived to help arrest § 87(2)(b). Within seconds of their arrival, PO Munoz told PO Khan that he was bleeding from the head. The two left § 87(2)(b) who was still in handcuffs, in the care of the other officers (although PO Khan does not know who these officers are, or what command they are from). PO Khan and PO Munoz found an ambulance, and both went via ambulance to § 87(2)(b), where PO Khan was treated for a laceration to the right side of his head, above his ear. He received five stitches. PO Khan prepared LOD paperwork and was out for four days.

He does not know how § 87(2)(b) sustained any injuries as he did not himself nor did he observe any officers use any physical force against § 87(2)(b) other than to attempt to remove his hands from under his waist area.

PO Manuel Munoz (enclosure 26)

PO Manuel Munoz of the 90th Precinct was interviewed at the CCRB on September 2, 2003. On March 9, 2003, PO Munoz was partnered with PO Thomas Brown. Once inside the hall, there was a fight taking place between several persons in the right of the lobby area. PO Munoz turned to face the exit and instructed people to leave the establishment. PO Munoz was pushed by a male who seemed to be coming from the rear of the club and moving toward the fight. PO Munoz turned to face the male, whom he identified in his interview as § 87(2)(b) and without coming into physical contact with him, told him to exit the establishment. § 87(2)(b) who was holding in one hand a glass bottle of some sort, backed away from PO Munoz. He shouted "Fucking cops." He then threw the empty glass bottle in the direction of PO Munoz, who ducked out of the way of it. PO Munoz turned and saw that the bottle had hit PO Khan. § 87(2)(b) ran toward the rear of the club. PO Munoz pursued him. He chased him for less than a minute, and for a distance of approximately five to ten feet. PO Munoz notes that everyone in the club was moving toward the exit. PO Munoz grabbed a hold of § 87(2)(b)'s right arm. § 87(2)(b) dropped to one knee, then to both knees. It was PO Munoz's impression that § 87(2)(b) was intentionally falling to the ground, as he had dropped to his knees. § 87(2)(b) then lay flat on the ground, face down. He put his hands under his waist area and refused to give his hands to PO Munoz, who was now kneeling to § 87(2)(b)'s right, and was attempting to pull § 87(2)(b)'s right arm from behind his back. PO Munoz was using only one arm; the other he used to secure his weapon. He did not come into contact with any part of § 87(2)(b)'s body other than his arm. After approximately one minute of struggling with § 87(2)(b) alone, PO Munoz was joined by several officers (less than five), one of whom was PO Khan, and the others who were from a command other than his own and whom he did not recognize. PO Munoz and these officers continued to struggle with § 87(2)(b) for an additional two to four minutes. There were people running around them, and PO Munoz was stepped on several times by these people. § 87(2)(b) was placed in handcuffs. PO Munoz noticed that PO Khan was bleeding from the right side of his face, near his ear. He told PO Khan that he was bleeding and that he wanted to have him have the injury looked at. PO Munoz did not strike § 87(2)(b) at any time; neither did he observe any other officer do so. PO Munoz led PO Khan out of the catering hall and out front, where there were several ambulances gathered. PO Khan was treated by EMTs and was transported by ambulance to a nearby hospital. After resuming patrol, he reported to the 79th Precinct and was told by Lt. Dee of the 79th Precinct that he would be handling § 87(2)(b)'s arrest processing, as he had witnessed § 87(2)(b) throw the bottle. PO Munoz identified § 87(2)(b) as the defendant at the stationhouse. He observed no injuries to § 87(2)(b) at that time.

PO Dolores Pilnacek (enclosure 30)

PO Dolores Pilnacek of the 79th Precinct was interviewed at the CCRB on October 21, 2003. On March 9, 2003, PO Pilnacek was Lt. Dee's operator. Upon entering the establishment, PO Pilnacek observed a male who she identified as § 87(2)(b) throw a bottle which hit an officer (although she does not recall which officer) in the head. Two officers immediately approached § 87(2)(b). One of the officers grabbed him by his left shoulder and the other by his shirt. § 87(2)(b) shook his body and the three went to the ground. Two additional officers went over to assist the others. PO Pilnacek, who was standing approximately twenty feet from this incident, did not go to assist the officers, as she was concerned with a group of females who were fighting to her left. When she looked back over to § 87(2)(b) about a minute later, he was in handcuffs on the ground. She did not see any officers strike him.

Outside of the club, Lt. Dee told PO Pilnacek that she would be handling § 87(2)(b)'s arrest paperwork even though she did not observe his arrest. He was transported to the stationhouse by another unit. She does not recall observing any injuries to § 87(2)(b) at the stationhouse, although she states that it is possible that he had sustained injuries.

PO Norman Grandstaff (enclosure 22)

PO Norman Grandstaff of the 79th Precinct was interviewed at the CCRB on June 20, 2003. On March 9, 2003, PO Grandstaff was working in the conditions auto with Sgt. Joseph Digennaro. Shortly after they arrived at the scene, additional units also arrived, although PO Grandstaff does not know which units these were. PO Grandstaff went into the hall in the direction of the fight, which was in the lobby. He does not recall which side of the lobby he was on. He separated two groups of fighting people by grabbing on to them and holding them back. He did not use any physical force beyond this. PO Grandstaff is not certain of how long he remained inside, and notes that everything happened very quickly. Upon entering the hall, he and Sgt. Degennaro were separated, and he does not know where the sergeant went or what he did. PO Grandstaff did not observe any officers using physical force against any civilians beyond holding aggressors' arms to keep them from swinging. He did not himself observe any civilians attacking any officers. PO Grandstaff left the hall without having made any arrests. There were a large number of officers on the scene by this time, although PO Grandstaff does not know how many. PO Grandstaff returned to the 79th Precinct stationhouse. He was assigned the arrest of § 87(2)(b) by one of his supervisors even though he did not observe the arrest. PO Grandstaff did not observe any injuries to § 87(2)(b) (when shown § 87(2)(b)'s arrest photo with a bandage over the left ear, he states that he recalls no such injury to the ear), and he does not recall § 87(2)(b) being treated by EMS or being removed to a hospital. PO Grandstaff was later told by PO Piazza of the 79th Precinct that § 87(2)(b) had swung a bottle at him, causing injury to his head.

PO Adolpho Piazza (enclosure 20)

PO Adolfo Piazza was interviewed at the CCRB on July 17, 2003. At the time of the incident, he was working with PO Carlos Parrilla as a nightclubs enforcement officer. After 20-40 minutes on scene, PO Piazza ran inside of the club after the disturbance broke out. Inside, he observed officers arresting one male, who he did not recognize. There were three to four officers around the male, who was resisting arrest, and an additional four to six officers who were standing in between the angry crowd and the arresting officers. PO Piazza made his way over to these officers. PO Piazza observed a glass bottle fly above the heads of the officers. He does not know who threw it and he did not see it hit anyone. PO Piazza walked less than sixty feet to stand as one of the officers shielding the arresting officers. He was in the lobby area of the club, and never went past the lobby area to the rest of the club. After PO Piazza had been standing for approximately one minute, a black male identified by PO Piazza as § 87(2)(b) (first by name and then by § 87(2)(b)'s arrest photo), approached the officers. He stopped and stood face to face with PO Piazza, approximately two feet from him. § 87(2)(b) was holding an empty glass bottle of Hennessy in his left hand. The two made eye contact. Nothing was said between them. § 87(2)(b) then turned sideways to PO Piazza, maintaining eye contact with him while holding the bottle away from him. PO Piazza, without saying anything to § 87(2)(b), reached around him and hit his left hand, knocking the bottle out of it and to the floor. § 87(2)(b) then punched PO Piazza one time in the nose with his left hand, breaking it. PO Piazza, who was now bleeding freely from his nose, pulled § 87(2)(b) over to him by grabbing his shirt. Three to four officers assisted him in grabbing § 87(2)(b). PO Piazza walked

§ 87(2)(b) over to a wall where there was a table. With the help of three or so other officers (he does not recall who), he lay § 87(2)(b) on the table from the waist up, with his head face-down on the table. PO Piazza attempted to handcuff § 87(2)(b). He was unsuccessful in doing so, as § 87(2)(b) pushed his arms back in refusal to be handcuffed. He flailed his elbows with sufficient force as to cause injury, but he did not come into contact with anyone in so doing. PO Piazza then hit § 87(2)(b) on the left side of the face with a closed fist “once or twice.” When asked how hard he punched § 87(2)(b), PO Piazza states that it was “enough force to make § 87(2)(b) comply” with being handcuffed. PO Piazza then handcuffed § 87(2)(b). § 87(2)(b) may have been bleeding at this point, as “there was blood” on the table around him, but it may also have been PO Piazza’s blood. There were approximately three officers assisting PO Piazza with handcuffing § 87(2)(b). None of the other officers struck § 87(2)(b). PO Piazza brought § 87(2)(b) to a police vehicle.

PO Piazza then went in one of the ambulances that was already at the scene and rode to § 87(2)(b), where he was treated for a broken nose. He returned to the stationhouse later that morning and completed Line of Duty paperwork. PO Piazza was shown a photo of § 87(2)(b)’s bandaged left ear. He does not know how that injury was sustained. He did not rip out § 87(2)(b)’s earring and he did not observe any other officer do so. PO Piazza took seven days of Line of Duty time.

Cpt. Richard Dee (enclosure 27)

Captain Richard Dee was interviewed at the CCRB on January 27, 2004.

On March 9, 2003, then-Lt. Dee, was the commanding officer of special operations in the 79th Precinct. At the time of the incident, Lt. Dee, who was with Sgt. Digenarro and PO Grandstaff, went to 760 Bedford Avenue. Judging by the size of the crowd, he determined to send people home and to call for additional units. After ten minutes of crowd control outside, Lt. Dee observed a commotion in the lobby of the club. He saw through the glass doors that bottles were being thrown and that people were running about. He entered the club along with several other officers through the middle door. There were 60-70 people in the lobby. It was very chaotic. There were at least two fistfights, people were running about in panic, and bottles were being thrown. Lt. Dee does not recall where in the lobby he went, but he spent roughly ten minutes directing people out of the club.

He was standing near PO Piazza. At one point, a young black male approached PO Piazza and faced him. Lt. Dee was standing three feet away, facing in the same direction as PO Piazza. The male, whom Lt. Dee does not identify, punched PO Piazza one time in the nose with a closed fist, breaking his nose. The male turned and headed away from Lt. Dee. Lt. Dee reached out and grabbed his shoulders from behind with both arms, holding on to him. Several additional officers (Lt. Dee does not recall how many) came over to assist Lt. Dee with effecting the arrest. The perpetrator refused to give up his arms, and Lt. Dee was attempting to get his arms behind his back. He used no force other than trying to get the male to place his arms behind his back. The assisting officers were also trying to get the male’s arms behind his back. Lt. Dee and the male both fell to their knees in the struggle. Another officer handcuffed the male, although Lt. Dee does not know which officer this was. It took roughly one minute to place the male in cuffs. Lt. Dee did not observe any officer strike the male while his arrest was being effected or at any other time. Once the male was secured, Lt. Dee ordered two officers (he does not recall which) to take the male outside. The officers removed the male from the club. PO Piazza also left the club to be treated for his injury. Lt. Dee did not observe PO Piazza strike the perpetrator at any time.

Sgt. Sean Patterson (enclosure 16)

Sgt. Sean Patterson of the 79th Precinct was interviewed at the CCRB on November 6, 2003. Sgt. Patterson entered the club with Sgt. Digenarro and PO Grandstaff. He was the 79th Precinct patrol supervisor. As he was breaking up a fight, he looked up and saw a male he identifies by name as § 87(2)(b) punching PO Piazza in the nose. He and Sgt. Digenarro chased after the male, who ran further into the lobby away from the exit after punching PO Piazza and each grabbed an arm and brought him to the ground. Once on the ground, face-down, the male was handcuffed by either Sgt. Patterson or Sgt. Digenarro. Sgt. Patterson had no physical contact with the male other than with his arms. He doesn’t believe that Sgt. Digenarro did either. The male was resisting by attempting to flail his arms and kick his legs. Once he was handcuffed, other officers arrived to assist the sergeants and removed him from the building.

Sgt. Joseph Digennaro (enclosure 18)

Sgt. Joseph Digennaro of the 79th Precinct was interviewed at the CCRB on November 6, 2003. Sgt. Digennaro, the Conditions sergeant, was partnered with PO Grandstaff. Inside of the club, Sgt. Digennaro states that he observed § 87(2)(b) whom he identifies by name and photograph, hit PO Piazza in the nose. § 87(2)(g)

PO Thomas Brown (enclosure 34)

PO Thomas Brown of the 90th Precinct was interviewed at the CCRB on October 28, 2003. PO Brown states that did not observe or engage in anything relevant to this investigation.

PO George Colorado (enclosure 32)

PO George Colorado of the 90th Precinct was interviewed at the CCRB on February 5, 2004. PO Colorado worked with PO Khan. § 87(2)(g). PO Colorado did not observe any physical contact between officers and civilians inside of the club. He had no physical contact with any civilians himself, remaining inside of the club for no more than seven minutes.

Medical Records

§ 87(2)(b) (enclosure 35)

§ 87(2)(b)'s medical records from § 87(2)(b) show that he was admitted on § 87(2)(b) at § 87(2)(b). He complained at that time of pain in his right rib cage, face, right arm and back and also of pepper spray causing pain in his eyes. He was diagnosed with pain (but no swelling or discoloration) in his lower back and rib cage. § 87(2)(b) was treated by Prison Health Services two days later. He was described as having a general appearance of "healthy" but still complained of back and right jaw pain. X-rays taken of § 87(2)(b) showed no broken bones.

§ 87(2)(b) (enclosure 36)

§ 87(2)(b)'s Ambulance Call Report shows that his chief complaint is of having asthma. He also had blunt trauma resulting in a "small" laceration to the top of his head. Aside from this, "no other medical problems or injuries" were noted by EMS. He was transported to § 87(2)(b) and was diagnosed with a laceration to the scalp there. He was given three sutures for the top of his head. These were removed nine days later.

§ 87(2)(b) (enclosure 37)

§ 87(2)(b)'s ACR shows that he was diagnosed with a minor laceration to his left ear lobe with no swelling. It notes that he did not report any other injuries. He was also transported to § 87(2)(b) where his ear injury was again noted as being "minor" and "superficial". He complained that "somebody pulled my earring out" and "my ear is bleeding." The records from § 87(2)(b) indicate that his ear was bleeding.

PO Adolfo Piazza (enclosure 43)

PO Piazza was treated by § 87(2)(b) and was diagnosed with a broken nose and a deviated septum.

Police Documents

Line of Duty Paperwork (enclosures 43-45)

PO Piazza's LOD paperwork shows that PO Piazza was punched in the face by § 87(2)(b) Lt. Dee prepared the LOD witness statement. PO Khan's LOD paperwork shows that he was struck by a glass bottle, causing injury to his ear. The assailant is not identified in the report. PO Thomas Brown sustained an injury to his hand when he fell to the ground and it was stepped on by an unknown person.

Arrest Paperwork (enclosures 38-40)

§ 87(2)(b)'s arrest paperwork shows that he was charged with § 87(2)(b). His arresting officer, PO Munoz, writes that he observed § 87(2)(b) throw a glass bottle at PO Khan's head. § 87(2)(a) 160.50

Command Log (enclosure 41)

The 79th Precinct Command Log shows that the three prisoners were brought to the desk between 0400 and 0420 hours. § 87(2)(b) was noted as having a small cut to his head, § 87(2)(b) a small cut to his ear, and § 87(2)(b) as having been pepper-sprayed. § 87(2)(b) is noted to have assaulted PO Piazza.

Stop & Frisk Log (enclosure 46)

The stop and frisk log shows no UF-250s prepared in connection with this incident.

Arrest Photos (enclosures 48-50)

§ 87(2)(b)'s arrest photo shows some blood on his shirt. § 87(2)(b)'s photo shows that he has a small bandage on his left ear. § 87(2)(b)'s arrest photo does not show any visible signs of injury.

Criminal Case Outcomes (enclosures 52-54)

§ 87(2)(b)
[REDACTED]

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]

Conclusions & Recommendations

Credibility Assessment

§ 87(2)(b)
§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g)
[REDACTED]
[REDACTED]

§ 87(2)(b)
§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(b)

§ 87(2)(g)

PO Munoz & PO Khan

§ 87(2)(g)

PO Grandstaff

§ 87(2)(g)

Lt. Dee

§ 87(2)(g)

Sgt. Patterson and Sgt. Digennaro

§ 87(2)(g)

Determination of Fact

It is not in question that a party was held at 760 Bedford Avenue on the morning of March 9, 2003, and that after 0300 hours there were still many people waiting to get inside. Several officers were conducting crowd control, attempting to get people to leave. Inside of the location, there was a dispute involving stolen coats. It quickly became a physical conflict. Officers rushed inside as panicked attendees rushed out. One of the civilians suspected of being involved in the fight was § 87(2)(b). He was being detained by at least one officer. § 87(2)(b) alleges that PO Grandstaff punched him in the face. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

All three of the prisoners were brought to the 79th Precinct stationhouse before all eventually going to § 87(2)(b) for treatment. § 87(2)(g)

Allegation [A] – PO Norman Grandstaff used physical force against § 87(2)(b)

§ 87(2)(g)

Allegation [B] – An officer struck § 87(2)(b) with a flashlight

§ 87(2)(g)

Allegation [C] – PO Adolfo Piazza used physical force against § 87(2)(b)

§ 87(2)(g)

Patrol Guide Procedure 203-11 makes clear that an officer can use the force necessary to effect an arrest. (enclosure 1) § 87(2)(g)

Allegation [D] – An officer used pepper spray against § 87(2)(b)

§ 87(2)(g)

Patrol Guide Procedure 212-95 is clear in stating that pepper spray “should be regarded as a possible alternative to force and restraint, where practical.” (enclosure 2) § 87(2)(g)

Allegation [E] – Officers used physical force against § 87(2)(b)

§ 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: